

23STCV31917 23STCV31917

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-08-20

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Case Number: 23STCV31917 Hearing Date: August 20, 2026 Dept: 507

TENTATIVE RULING:

Plaintiff Keyron L. Binns's motion for sanctions is DENIED.

Moving party to give notice, unless waived.

DISCUSSION:

Motion for Sanctions

Legal Standard

When an attorney or unrepresented party presents to the court a pleading or motion, the "attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, all of the following conditions are met: (1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation. (2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law. (3) The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery. (4) The denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief." (Code Civ. Proc., § 128.7, subd. (b).)

"If, after notice and a reasonable opportunity to respond, the court determines that subdivision (b) has been violated, the court may, subject to the conditions stated below, impose an appropriate sanction upon the attorneys, law firms, or parties that have violated subdivision (b) or are responsible for the violation. In determining what sanctions, if any, should be ordered, the court shall consider whether a party seeking sanctions has exercised due diligence." (Code Civ. Proc., § 128.7, subd. (c).)

Analysis

Plaintiff moves for sanctions pursuant to Code of Civil Procedure sections 128.7 and 128.5, arising from Defendant's removal of this action to the Central District of California in September 2024.

Plaintiff argues Defendant's Notice of Removal to the Central District of California was submitted seven days late, in an attempt to abuse the process of proper service of summons and complaints. (Mot., p. 4.) Plaintiff further argues other defendants did not consent to the removal order. (Mot., p. 5.) Plaintiff contends Defendant has violated res judicata and judicial estoppel by submitting the 2024 removal of this action, since diversity jurisdiction and subject matter jurisdiction were already adjudicated. (Mot., p. 6.)

In opposition, Defendant argues Plaintiff's motion should be denied because it fails to comply with Code of Civil Procedure section 128.7, subdivision (c). (Opp., p. 3.) Defendant further argues that, even if Plaintiff had complied with section 128.7, subdivision (c), Defendant's actions made in connection with its removal of this lawsuit to federal court were proper, thus sanctions are not warranted. (Opp., p. 4.) Defendant contends the removal was timely, that consent was not needed from any other defendant as no other defendant had been served at the time of removal, and the arguments presented against remand were properly presented and made in good faith. (Opp., p. 4.)

Code of Civil Procedure section 128.7 subdivision (c)(1) requires that a sanctions motion be served on the opposing party at least twenty-one days before it is filed. Additionally, a court may order a party to pay the reasonable expenses incurred by another party "as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." (Code Civ. Proc., § 128.5, subd. (a).) "Failure to comply with the safe harbor provisions 'precludes an award of sanctions.'" (Transcon Financial, Inc. v. Reid & Hellyer, APC (2022) 81 Cal.App.5th 547, 551.)

Plaintiff's proof of service shows Plaintiff served a copy of the instant motion on Defendant on June 16, 2026. Plaintiff filed the instant motion with the court on June 24, 2026. Thus, Plaintiff failed to provide the required twenty-one-day notice and the motion for sanctions cannot be granted. Further, Defendant's counsel attests he received the motion at his office via mail on July 27, 2026, and that Plaintiff did not otherwise indicate intent to seek sanctions on the bases described in their motion prior to filing the instant motion with the Court. (Leddy Decl., ¶¶ 2 and 3.)

Accordingly, Plaintiff Keyron L. Binns's motion for sanctions is DENIED.

Moving party to give notice, unless waived.

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.